

Court No. - 39

Case :- WRIT - C No. - 45476 of 2023

Petitioner :- M/S Ananya Enterprises

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd.And
Another

Counsel for Petitioner :- Munesh Kumar

Counsel for Respondent :- Alok Mishra

Hon'ble Saumitra Dayal Singh,J.

Hon'ble Manjive Shukla,J.

On the request of Sri Alok Mishra, learned counsel for the
respondent, put up as fresh on 07.2.2024.

Order Date :- 17.1.2024

Madhurima

(Manjive Shukla, J.) (S.D. Singh, J.)

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Hon'ble Saumitra Dayal Singh,J.

Hon'ble Manjive Shukla,J.

1. On preliminary objection raised by Sri Alok Mishra, learned counsel appearing for the respondents, it cannot be disputed that the present is the second writ petition filed by the petitioner for the same cause of action. His earlier Writ- C No. 32166 of 2023 (M/s Ananya Enterprises Vs. Dakshinanchal Vidyut Vitran Nigam Ltd.) was disposed of vide order dated 4.10.2023.

2. Leaving it open for the petitioner to avail its remedy by moving an application under Clause 6.5. of the U.P. Electricity Supply Code, 2005 if that remedy has still not been availed by the petitioner, the writ petition is accordingly **dismissed**.

Order Date :- 15.2.2024

n.u.

(Manjive Shukla, J) (S.D. Singh, J)